

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JERRY PROVINCE,

Plaintiff,

-against-

CITY OF NEW YORK, MARK DELOSSANTOS,
JULIO ACURIA, SEAN RIKER and JOHN or JANE
DOE 1-10,

Defendants.

-----X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 26, 2021

/s/ Samuel C. DePaola

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard – Suite 201

Bayside, New York 11361

T: (718) 281-0400

TO: CITY OF NEW YORK

Via Corporation Counsel of the City of New York
100 Church Street, New York, NY 10007

P.O. MARK DE LOS SANTOS (Tax Reg. No. **951672**)

SGT. SEAN RIKER (Shield No. **1785**)

Via 1 Police Plaza, New York, NY 10038

SGT. JULIO ACURIA (Tax Reg. No. **933593**)

Via 84th Pct

301 Gold Street, Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

JERRY PROVINCE,

VERIFIED COMPLAINT

Plaintiff,

-against-

Index No.

CITY OF NEW YORK, MARK DELOSSANTOS,
JULIO ACURIA, SEAN RIKER and JOHN or JANE
DOE 1-10,

Defendants.

-----X

Plaintiff, **JERRY PROVINCE**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, for his complaint against the Defendants, **CITY OF NEW YORK, MARK DELOSSANTOS, JULIO ACURIA, SEAN RIKER and JOHN or JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress vis-à-vis sections 1981, 1983, 1985, 1986 and 1988 of title 42 of the United States Code for the violation of his civil rights protected by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.
2. The following claims arise from a September 17, 2016 incident, in which defendants, acting under color of state law, unlawfully stopped, searched, seized, detained and plaintiff without a valid judicially authorized arrest warrant, reasonable suspicion, probable cause or any other legal justification to do so.
3. Defendants unlawfully, stopped, searched, seized, detained, arrested and prosecuted Mr. Province for various crimes and offenses under color of state law.

4. Mr. Province was therefore maliciously prosecuted and denied his rights to fair trial and due process, until the criminal proceedings were terminated in his favor, via the unconditional and outright dismissal of all adverse charges on December 15, 2017, pursuant to sections 160.50 and 160.60 of the New York Criminal Procedure Law.

5. The above referenced acts caused Mr. Province to be deprived of his liberty and violated his rights to be free from unreasonable searches and seizures, in addition his rights to be afforded due process and equal protection of the laws.

6. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all accrued interest, and such other and further relief, as this Court may deem just and proper.

PARTIES

7. Plaintiff, Mr. Jerry Province ("Mr. Province"), is an African American male, who resides within the County of Kings and State of New York.

8. The Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

9. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives, and supervisory officers as well as the individually named Defendants herein.

10. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

11. Defendants, **MARK DELOSSANTOS** (“DELOSSANTOS”), **JULIO ACURIA** (“ACURIA”), **SEAN RIKER** (“RIKER”), at all relevant times herein, police officers, sergeants, detectives or supervisory officers employed by the NYPD, and, as such, were acting in the capacities of agents, servants and employees of the City of New York. Defendants were, at all relevant times herein, believed to be assigned to the 84th Precinct of the NYPD. Defendants are being sued in their individual and official capacities.

12. At all relevant times, Defendants, John or Jane Doe 1-10, were police officers, detectives, supervisors, policymakers or officials employed by the NYPD. At this time, Plaintiff is not privy to the true identities of defendants, John or Jane Doe 1-10, as such knowledge is within the exclusive possession of defendants.

13. At all relevant times herein, Defendants, John or Jane Doe 1-10, were acting as agents, servants and employees of the City of New York, the NYPD. Defendants, John or Jane Doe 1- 10, are being sued in their individual and official capacities.

14. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

15. On September 17, 2016, at approximately 8:00 p.m., Mr. Province was lawfully inside of the Regal movie theater located at 106 Court Street, Brooklyn, New York.

16. Mr. Province lawfully entered and remained within said premises after purchasing a movie ticket.

17. Mr. Province did not commit any crimes or violations of the law and was not accused of such by any identified witnesses.

18. While Mr. Province was lawfully within said movie theater, he was aggressively approached by defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, who were holding their arms outstretched toward Mr. Province in a threatening and intimidating manner.

19. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, then unlawfully stopped by Mr. Province by grabbing him by his body and limbs, despite possessing no legal basis to do.

20. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, then demanded that Mr. Province produce his government issued identification, despite being without any reasonable suspicion or probable cause to believe that Mr. Province had committed any crime or violation of the law.

21. When Mr. Province questioned defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, as to the reason defendants required his identification, defendants, DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, immediately struck Mr. Province's all about his body and head, tackled him to the ground, and physically restrained him while violently contorting his arm behind his back before finally affixing metal handcuffs to his wrists in an excessively fashion, which caused Mr. Province to sustain substantial physical pain and injuries to his back, neck, arms, hands and wrists.

22. Mr. Province complained to defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, that the handcuffs were too tight and causing to him suffer substantial pain but said defendants either ignored or outright refused to loosen the handcuffs.

23. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, lacked any probable cause or reasonable suspicion to stop, seize or arrest Mr. Province, because

defendants never observed Mr. Province commit any crime or violation of the law and were never informed by anyone else that he committed any crime or violation of the law.

24. Defendants, including, DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, then proceeded to illegally search Mr. Province's person by rifling through clothing and pulling out his pockets, despite the clear lack of any indicia of secreted contraband or unlawful activity.

25. Said application of excessive force constituted the completed torts of assault and battery by defendants, including Ibrahim and John Doe 1.

26. Due to the injuries inflicted upon Mr. Province by defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, before, during and after the handcuffs applied, Mr. Province required immediate medical attention and transported to Interfaith Medical Center, where he was treated for his myriad injuries while still in the custody of said defendants.

27. Mr. Province was involuntarily detained by defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, over the course of several months.

28. Prior to Mr. Province's criminal court arraignment, defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, forwarded untrue and fabricated information to prosecutors which resulted in the filing of a criminal court complaint falsely charging Mr. Province with the crime of Resisting Arrest and other related offenses, under Kings County Criminal Court Docket Number 2016KN055690.

29. Defendants, including, DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, fabricated observations of fictitious events and occurrences, namely that Mr. Province was observed to be resisting arrest, trespassing, and acting disorderly, when defendants knew such to be complete fabrications.

30. Mr. Province asserts that Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, falsely arrested, wrongfully detained and maliciously prosecuted him with the full knowledge that he had committed no crimes or violations of the law.

31. Mr. Province, therefore, asserts that due to the clear absence of any viable probable cause to warrant his criminal prosecution, at any point, he was denied his rights to fair trial and due process and was maliciously prosecuted from the moment of his arraignment, until the criminal proceedings were irrefutably terminated in Mr. Province's favor on December 15, 2017, when all charges were unconditionally and outright dismissed and sealed, pursuant Section 160.50 of the New York Criminal Procedure Law, due to the lack of probable cause to believe that he was guilty or that the prosecution would succeed.

32. At all times relevant hereto, the defendants, including, DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, were involved in the decision to stop, seize, arrest and prosecute Mr. Province without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

33. At all times relevant hereto, the defendants, including, DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, subjected Mr. Province to excessive force, or failed to intervene when they observed others subjecting him to excessive force.

34. Defendant City has engaged in a policy, custom, or pattern and practice of stopping vehicles driven by ethnic minorities without probable cause or reasonable suspicion to do so,

35. Defendant City has also engaged in a policy, custom, or pattern and practice of illegally stopping, searching and arresting African American males, who are observed interacting with white individuals, due solely to their impermissible and uncorroborated belief that such interaction can only be criminal in nature

36. Mr. Province asserts that the aforementioned unlawful acts committed by defendants are representative of a pervasive policy, custom or pattern and practice within the City of New York and the NYPD in particular.

37. Mr. Province asserts that Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, illegally approached, stopped, searched, and then falsely arrested him, due solely to their racially discriminatory prejudices against African American males, their intent to use the instant arrest as leverage against Mr. Province, so that he would provide defendants with information regarding other crimes or criminal suspects, their desires to fulfill an unconstitutional arrest quota and to benefit from increased overtime compensation.

38. Mr. Province further asserts that Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, acted in such an unlawfully reprehensible manner, due to their unsubstantiated and unreasonable presumption that Mr. Province would be aware of serious ongoing criminal activity or actively committing a crime himself, solely because of his status as an African American male.

39. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, arrested and maliciously prosecuted Plaintiff, because of their racially discriminatory beliefs, which compelled defendants to equate to Mr. Province's race to criminal guilt or criminal knowledge.

40. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the stop, searches, assaults, batteries, seizure, arrest, and malicious prosecution against plaintiff, even after they were unable to discover any evidence to justify such conduct.

41. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted plaintiff, due solely to defendants' perception or consideration of Mr. Province's race.

42. Mr. Province asserts that the aforementioned unlawful acts committed by defendants are representative of the City of New York's and NYPD's pervasive policy, custom or pattern and practice of falsely arresting individuals for refusing to provide identification or questioning the unlawful activities of the defendant police officers.

43. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations against Mr. Province, namely the stop, searches, assaults, batteries, seizure, arrest, and malicious prosecution against plaintiff, despite the absence of any evidence to justify such conduct.

44. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted plaintiff, due solely to defendants' desire to prevent Mr. Province from exerting his First Amendment right to engage in protected speech and activities, such as his refusal to acquiesce to an unlawful request to provide identification to said defendant police officers and his questioning of said defendant police officers' right to stop, search, seize and arrest him in the absence of probable cause to believe to that he committed any crime or violation of the law.

45. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, possessed no valid reason to approach, stop, question, search or arrest plaintiff, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities, including defendants' invidious and bias based discrimination against African American males, such as Mr. Province, defendants' retaliation for Mr. Province's refusal to

provide his identification and questioning and questioning of defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, right to stop, search, seize and arrest him without probable cause or reasonable suspicion.

46. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, subjected Mr. Province to disparate treatment compared to other individuals similarly situated, because defendants did not stop, accuse, seize or arrest any of the other multiple white pedestrians, who were engaged in activity identical to the kind that resulted in plaintiff's illegal search and seizure, namely lawfully entering the subway after paying with their own MetroCard.

47. Defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, engaged in a conspiracy to falsely arrest and maliciously prosecute Mr. Province by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence the suppression of exculpatory evidence, as well the manner and means by which said fabrications would be forwarded to prosecutors.

48. Mr. Province asserts that the defendants, including DELOSSANTOS, ACURIA, RIKER and JOHN or JANE DOE 1-2, who violated his civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

49. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly

engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

50. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

51. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemic throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has

even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

52. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled “Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn’t Involved,” describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

53. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

54. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

55. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further

handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

56. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

57. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

58. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking

Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

59. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

60. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Mr. Province’s arrest without probable cause.

61. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

62. Defendants' actions, pursuant to Mr. Province's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

63. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

64. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

65. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional

violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including defendants, Ibrahim and John Doe 1.

66. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

67. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

68. The aforementioned acts of defendants, including the City of New York, Omar Ibrahim and John or Jane Doe 1-10, directly or proximately resulted in the deprivation or violation of Mr. Province's civil rights, as enumerated and set forth by the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

69. As direct or proximate results of said acts, Mr. Province was caused to suffer the loss of his liberty, irreparable reputational harm, the loss of earnings and potential earnings, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional

distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

70. The above paragraphs are here incorporated by reference as though fully set forth.

71. Plaintiff engaged in speech and activities that were protected by the First Amendment to the Constitution of the United States.

72. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

73. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

74. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

75. Accordingly, plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the Constitution of the United States, was violated by defendants.

76. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

77. The above paragraphs are here incorporated by reference as though fully set forth.

78. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

79. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

80. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

81. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

82. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

84. The above paragraphs are here incorporated by reference as though fully set forth.

85. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

86. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

87. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

88. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

89. The above paragraphs are here incorporated by reference as though fully set forth.
90. The Defendants violated Plaintiff's rights, under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
91. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.
92. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

93. The above paragraphs are here incorporated by reference as though fully set forth.
94. Defendants initiated the prosecution against Plaintiff.
95. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.
96. Defendants acted with malice, which may be inferred in the absence of probable cause.
97. The prosecution was terminated in Plaintiff's favor, when all adverse charges were unconditionally dismissed, due to the lack of probable cause to believe that plaintiff had committed a crime or that the prosecution would succeed.
98. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.
99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

100. The above paragraphs are here incorporated by reference as though fully set forth.
101. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.
102. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against plaintiff, especially with the absence of any cognizable probable cause.
103. Defendants intended to inflict substantial harm upon plaintiff.
104. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.
105. Defendants' actions therefore resulted in deprivations to plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments.
106. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 Against Individual Defendants

107. The above paragraphs are here incorporated by reference as though fully set forth.
108. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.
109. Defendants forwarded said false information to prosecutors.
110. Defendants' actions resulted in post-arraignment deprivations to plaintiff's liberty and freedom of movement.

111. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to Constitution of the United States.

112. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act under
New York City Law

113. The above paragraphs are here incorporated by reference as though fully set forth herein.

114. Defendants' acts or series of acts constituted a misdemeanor or felony against plaintiff, as defined in state or federal law which presented a serious risk of physical injury to plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

115. Accordingly, defendants committed a crime of violence against plaintiff and violated plaintiff's rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

116. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

118. The above paragraphs are here incorporated by reference as though fully set forth herein.

119. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected

unlawful activity.

120. Accordingly, defendants violated plaintiff's rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

121. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

122. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under
New York State law

123. The above paragraphs are here incorporated by reference as though fully set forth herein.

124. Plaintiff, as an African American male, is a member of a racial minority and protected class.

125. Defendants discriminated against Plaintiff on the basis of his race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

126. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

127. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

128. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

129. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

130. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

131. Accordingly, defendants violated plaintiff's rights, pursuant to article I, section 11, of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

132. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

133. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 & 1983 Against Individual Defendants & City

134. The above paragraphs are here incorporated by reference as though fully set forth herein.

135. Plaintiff, as an African American male, is a member of a racial minority and protected class.

136. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.

137. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

138. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

139. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

140. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

141. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

142. Accordingly, defendants violated plaintiff's rights, under the Fourteenth Amendment.

143. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

144. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants & City

145. The above paragraphs are here incorporated by reference as though fully set forth herein.

146. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

147. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

148. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

149. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

150. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

151. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

152. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

154. The above paragraphs are here incorporated by reference as though fully set forth herein.

155. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

156. Accordingly, the Defendants who failed to intervene violated the Fourth, Fifth, and Fourteenth Amendments.

157. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

158. The above paragraphs are here incorporated by reference as though fully set forth.

159. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

160. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

161. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

162. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

163. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

164. Defendant City's conduct caused the violation of plaintiff's civil rights, pursuant to Constitution of the United States.

165. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- p) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and the applicable sections of the Administrative Code of the City of New York;
- q) Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
May 26, 2021

SIM & DEPAOLA, LLP

Attorneys for Plaintiff

42-40 Bell Boulevard – Suite 201

Bayside, New York 11361

Tel: (718) 281-0400

Fax: (718) 631-2700

By: /s/ Samuel C. DePaola

Samuel C. DePaola, Esq.

ATTORNEY VERIFICATION

I, **SAMUEL C. DEPAOLA, ESQ.**, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
May 26, 2021

/s/ Samuel C. DePaola

SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JERRY PROVINCE,

Plaintiff,

-against-

CITY OF NEW YORK, MARK DELOSSANTOS, JULIO ACURIA, SEAN RIKER and JOHN
or JANE DOE 1-10,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard

Suite 201

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for